

SANHITA360

CHAPTER VA

CRIMINAL CONSPIRACY

IPC Sections 120A-120B and BNS Section 61

Agreement, overt act and punishment

ACADEMIC NOTE

This comparative study explains criminal conspiracy under the Indian Penal Code, 1860 and Bharatiya Nyaya Sanhita, 2023. It is educational material, not legal advice.

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Chapter Overview

Criminal conspiracy is an agreement between two or more persons to do an illegal act, or to do a lawful act by illegal means. IPC Sections 120A and 120B separately stated the definition and punishment. BNS Section 61 consolidates both rules into one provision without materially changing their central structure.

The agreement is the foundation of liability. For an agreement to commit an offence, the agreement itself completes the conspiracy. For any other illegal object or lawful object pursued by illegal means, an act besides the agreement must be done in pursuance of it.

Learning Objectives

- Identify the agreement that forms the core of criminal conspiracy.
- Distinguish an agreement to commit an offence from other conspiratorial agreements.
- Explain when an overt act is required.
- Apply the two punishment categories under IPC Section 120B and BNS Section 61(2).
- Distinguish criminal conspiracy from abetment by conspiracy and common intention.
- Explain why direct evidence of conspiracy is uncommon and circumstantial proof must establish agreement.

IPC-to-BNS Mapping

IPC Section 120A	BNS Section 61(1)	Definition of criminal conspiracy, including the overt-act proviso.
IPC Section 120B	BNS Section 61(2)	Punishment for serious and other conspiracies.

Section 120A IPC: Definition of Criminal Conspiracy

When two or more persons agree to do, or cause to be done, an illegal act, or an act which is not illegal by illegal means, the agreement is designated a criminal conspiracy.

The overt-act proviso

No agreement other than an agreement to commit an offence amounts to criminal conspiracy unless one or more parties do an act besides the agreement in pursuance of it. Therefore, no further overt act is required where the agreed object is itself an offence; an overt act is required in the other statutory category.

Object and incidental illegality

It is immaterial whether the illegal act is the ultimate object of the agreement or merely incidental to that object. The prosecution must nevertheless identify the unlawful agreement and connect the accused to it.

Corresponding provision: BNS Section 61(1). It uses the phrase 'agree with the common object' and preserves the same two categories, proviso and explanation.

Section 120B IPC: Punishment of Criminal Conspiracy

Serious conspiracy

Where the conspiracy is to commit an offence punishable with death, imprisonment for life, or rigorous imprisonment for two years or more, and no express punishment is provided, a party is punished in the same manner as if that person had abetted the offence.

Other conspiracy

For other criminal conspiracies, the punishment is imprisonment of either description for up to six months, or fine, or both.

Corresponding provision: BNS Section 61(2). The BNS consolidates both punishment branches without a material change to the stated thresholds or maximum punishment.

Conspiracy Compared with Related Doctrines

Issue	Criminal conspiracy	Abetment by conspiracy
Core requirement	The unlawful agreement is the offence.	Agreement plus an act or illegal omission in pursuance and towards the thing abetted.
Overt act	Not required when the agreement is to commit an offence; otherwise required.	Required for the conspiracy mode of abetment.
Statutory location	IPC 120A-120B; BNS 61.	IPC 107; BNS 45.
Completion	May be complete before the planned offence is attempted.	Depends on satisfying the particular mode of abetment.

Conspiracy and common intention

Common intention under IPC Section 34 or BNS Section 3(5) is a rule of joint liability when a criminal act is done by several persons in furtherance of their common intention. Criminal conspiracy is a substantive offence centred on agreement. The doctrines may overlap on facts but their elements must be proved separately.

Proof of agreement

Conspiracies are usually formed in secrecy, so agreement may be inferred from proved conduct, communications, coordinated acts and surrounding circumstances. However, association, knowledge, relationship or presence alone does not automatically prove participation in the agreement. The circumstances must point to a meeting of minds concerning the unlawful object or means.

Exam caution: do not infer conspiracy merely because several accused know one another or because their conduct appears suspicious. Identify evidence connecting each accused to the agreement.

Key Points

- Two or more persons and an agreement are essential.
- The object may be an illegal act or a lawful act pursued by illegal means.
- An agreement to commit an offence needs no further overt act under the statutory proviso.
- Other conspiratorial agreements require an act besides the agreement in pursuance of it.
- The illegal act may be the ultimate object or merely incidental.
- Punishment depends on the seriousness of the offence forming the object of the conspiracy.
- BNS Section 61 consolidates IPC Sections 120A and 120B.
- Criminal conspiracy is distinct from abetment by conspiracy and common intention.

Legal References - Important Statutory Provisions

- Indian Penal Code, 1860 - Section 120A: Definition of criminal conspiracy.
- Indian Penal Code, 1860 - Section 120B: Punishment of criminal conspiracy.
- Bharatiya Nyaya Sanhita, 2023 - Section 61: Criminal conspiracy.
- Indian Penal Code, 1860 - Section 107: Abetment by conspiracy.
- Bharatiya Nyaya Sanhita, 2023 - Section 45(b): Abetment by conspiracy.

- Indian Penal Code, 1860 - Section 34 and BNS Section 3(5): Common intention.
- Bharatiya Sakshya Adhiniyam, 2023 - rules governing relevance and proof of conspiracy-related facts.

Exam Focus

Identify the alleged agreement, every party, the object and the proposed means. Classify the agreement: if its object is an offence, explain why no further overt act is required; otherwise identify the act done in pursuance. Select the appropriate punishment branch by stating the punishment attached to the object offence. Compare criminal conspiracy with abetment by conspiracy and common intention whenever the facts involve coordinated conduct.

Revision Notes

- IPC 120A maps to BNS 61(1).
- IPC 120B maps to BNS 61(2).
- Agreement is the foundation of the offence.
- An overt act is unnecessary when the agreement is to commit an offence.
- Other agreements require an act besides the agreement in pursuance of it.
- Serious conspiracy is punished as abetment where no express punishment exists.
- Other conspiracy carries up to six months, fine, or both.
- Association or knowledge alone is not necessarily an agreement.

Official Reading and Disclaimer

[Bharatiya Nyaya Sanhita, 2023 - official Ministry of Home Affairs text](#)

[Indian Penal Code, 1860 - India Code text](#)

Always check amendments and binding judicial interpretation. This study material does not provide legal advice.